



Andrew P <andrewjpigors@gmail.com>

RE: Formal Notice: Ledger Discrepancy, Unauthorized Charges, and Lease Violations2 messages

South Haven Park MHC <southhaven@ourhomesofamerica.com>

Thu, Dec 12, 2024 at 5:55 PM

To: Andrew P <andrewjpigors@gmail.com>, South Haven Park MHC <southhaven@ourhomesofamerica.com>

Good evening, Andrew

As stated in the previous email attached here the voicemail also attached here only states she will be mailing a payment in she does not say one was sent or when she will be sending that in.

So that does fall on you to provide proof that payment was sent in and cashed by us.

In your email you state you provided proof of this payment to previous management; however, you state that was done in Sept 2024 and the payment in question you say was made on Oct 1st of 2024. So, our question will be "What payment did you provide proof of if this payment wasn't made until Oct 2024?"

If you are able to provide that proof, we will gladly remove any late fees for that Oct payment.

We have been in the office until 5pm this week and at no time have you attempted to come into the office and provide the requested information to us so that we can rectify the issues. And there is a drop box on site in the event someone is not in the office, and we have made all residents aware of the placement of this drop box.

To address your #2 concern there has been no attempts to charge you for water, so I am not sure where that concern is coming from. Yes, we did have water meters installed at each home site. That is to better understand the water use and update our community for the better.

These meters give warnings when there are water leaks so we can address those immediately which would save damage to any of the homes within the community whether that is a home owned by a tenant or a home owned by the community. If there were to be a change and tenants were to be billed for the water written notice would be given well in advance of that happening and if you have a current lease on file those charges would go into effect once that lease is up and a new one is signed.

So to address your concerns we will be waiting for you to supply the requested proof and once that is received we will make the necessary updates to your account.

If you have already received this proof, I am asking that you provide it to myself, or Shelly and we can assure your account be updated.

We have no timeline to provide and cannot provide one as we will be waiting for you to provide the proof of the October rent payment. The voicemail is not proof payment was made. We need a copy of the check and proof that check was cashed by Homes Of America.

Thank You,

Cassandra VanDam

Community Manager

River Grove MHC LLC

269-815-5587

South Haven MHC LLC

269-906-3007

From: Andrew P <andrewjpigors@gmail.com>

Sent: Thursday, December 12, 2024 4:12 PM

To: South Haven Park MHC <southhaven@ourhomesofamerica.com>

Subject: Formal Notice: Ledger Discrepancy, Unauthorized Charges, and Lease Violations

Dear Shady Oaks Management,

This letter serves as formal notice regarding several unresolved issues that have persisted for months, including a payment discrepancy, improper late fees, and attempts to impose unauthorized charges for water. Despite my repeated attempts to address these concerns with both previous and current management, no corrective action has been taken.

1. Ledger Discrepancy and Late Fees

A payment of \$1,962.45 was made on October 1, 2024, as confirmed by a voicemail and screenshot from the Michigan Department of Health and Human Services (MDHHS). However, this payment has not been reflected in my ledger, resulting in an inaccurate balance. I have made multiple attempts to resolve this issue with management, including several emails to previous managers and recent communications with the current park manager, Cassandra, who began on December 9, 2024.

Despite these efforts, I have been told that it is my responsibility to repeatedly contact MDHHS and provide proof of payment—a task I have already completed under the previous manager in September 2024, who assured me that the issue was resolved. It is

now December 2024, and I have received no resolution. To make matters worse, the forwarding number provided for tenants to contact has a full voicemail and is not returning calls.

The ongoing ledger discrepancy has led to my account showing an inflated balance of over \$2,900, which includes late fees and the omission of my \$1962.45 payment. This mismanagement not only violates MCL 554.139(1)(a), which requires accurate financial recordkeeping, but also MCL 554.633(1), which prohibits imposing penalties caused by landlord negligence.

This failure has also negatively impacted my custody case by preventing me from providing accurate financial records to the court. The court has viewed these inaccuracies as evidence of financial instability, leading to additional emotional and financial strain, including continued overpayment of child support.

2. Unauthorized Water Charges

Attempts to charge me for water usage are invalid as there is no provision in my lease agreement requiring me to pay for water. Additionally, under MCL 554.139(1)(a), landlords cannot interfere with a tenant's use of their property, and MCL 600.2918(2)(a) prohibits unauthorized modifications, such as installing a water meter without consent.

3. Rent Increase

Additionally, when I re-signed my lease this past year, my rent was increased by \$300 per month, rising from \$395 to \$695. While I understand rent increases are allowed under certain conditions, the significant hike in rent adds to the financial burden I am already facing due to mismanagement of my account. This substantial increase, coupled with the ledger discrepancies, lack of communication, and unresolved issues, demonstrates an ongoing pattern of poor management and negligence.

Requested Actions

I respectfully request the following actions within 14 days:

1. Update my ledger to reflect the \$1,962.45 payment made on October 1, 2024.
2. Remove all late fees applied to my account since October 2024.
3. Cease all attempts to charge me for water usage unless explicitly included in the lease.
4. Provide written confirmation of these corrections so I can submit them to the court to ensure accurate child support calculations.

Failure to Act

Failure to address these issues within the specified 14-day timeframe will leave me no choice but to pursue remedies under MCL 554.631, MCL 445.901, and other applicable laws. These remedies include filing complaints with the Michigan Attorney General's Consumer Protection Division, reporting the matter to the U.S. Department of Housing and Urban Development (HUD) for further investigation, and initiating legal action to recover financial damages caused by your negligence.

I have been patient in trying to resolve these issues over the last several months despite the challenges caused by management turnover and poor communication. I trust that this letter will be sufficient to prompt immediate corrective action. Please confirm receipt of this letter and provide a timeline for resolution. You may contact me at (231) 903-5690 or via email at andrewjpigors@gmail.com to discuss further.

Sincerely,

Andrew Pigors

1977 Whitehall Road, Lot 17

Muskegon, MI 49445

andrewjpigors@gmail.com

(231) 903-5690

On Mon, Dec 9, 2024, 11:15 AM Cassandra <email@rentmanager.com> wrote:

Good Afternoon Residents,

You will notice near the mailbox a new drop box has been placed for your convenience when paying monthly rent.

You will have a new Manager starting on 12/9/2024. Her name is Shelly and once she gets thru training she will reach out to you all and will introduce herself.

Cassandra

----- Forwarded message -----

From: South Haven Park MHC <southhaven@ourhomesofamerica.com>
To: Andrew P <andrewjpigors@gmail.com>, South Haven Park MHC <southhaven@ourhomesofamerica.com>
Cc:
Bcc:
Date: Tue, 10 Dec 2024 15:55:39 +0000
Subject: RE: Re:

We need a copy of payment proof, and we also need proof that payment was cashed by us.

The phone voicemail just says they will mail it out they did not say that it had been mailed out or when they would mail it out.

As far as our records show we never received it so we need to see that proof.

What that phone message said was that our banking would not accept the direct deposit they attempted to make.

It is not for us to contact your MDHHS worker it is for you to reach out for that proof that payment was made.

Thank You,

Cassandra

From: Andrew P <andrewjpigors@gmail.com>
Sent: Tuesday, December 10, 2024 10:49 AM
To: South Haven Park MHC <southhaven@ourhomesofamerica.com>
Subject: Re:

What's the process?

Because Shady Oaks failed, on multiple occasions. I have done my due diligence, as the voicemail said, this is on Shady Oaks, not me. Shady Oaks needs to contact the MDHHS and correct their errors with sigma.

On Tue, Dec 10, 2024, 9:00 AM South Haven Park MHC <southhaven@ourhomesofamerica.com> wrote:

I have listened to the voicemail but we need proof that check was sent and cashed by us in order to get those funds added to your account.

I'm sorry there is a process and we need to follow that.

Cassandra

From: Andrew P <andrewjpigors@gmail.com>
Sent: Monday, December 9, 2024 4:24 PM
To: South Haven Park MHC <southhaven@ourhomesofamerica.com>
Subject:

Here is the department of health and human services voicemail

2 attachments

 **RE: Re:.eml**
13K

 **12313296913.1726849311.282.amr**
169K

Andrew P <andrewjpigors@gmail.com>
Draft To: South Haven Park MHC <southhaven@ourhomesofamerica.com>

Thu, Dec 12, 2024 at 6:23 PM

[Quoted text hidden]

[Quoted text hidden]

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From: South Haven Park MHC <southhaven@ourhomesofamerica.com>
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